

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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MARIA GARCIA,

Plaintiff,

-against-

POLICE OFFICER MICHAEL MENDEZ, Shield No.
7126, POLICE OFFICER ROBERT GOULD, Shield No.
12374, DETECTIVE WILLIAM DOOLEY, Shield No.
12614, SERGEANT VICENTE D. RODRIGUEZ, and
POLICE OFFICERS JOHN DOES #1-10 (names and
number of whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 3, 2019

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER MICHAEL MENDEZ, Shield No. 7126, 25th Precinct, 120 E 119th St, New York, NY 10035
POLICE OFFICER ROBERT GOULD, Shield No. 12374, 25th Precinct, 120 E 119th St, New York, NY 10035
DETECTIVE WILLIAM DOOLEY, Shield No. 12614, 25th Precinct, 120 E 119th St, New York, NY 10035
SERGEANT VICENTE D. RODRIGUEZ, 25th Precinct, 120 E 119th St, New York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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MARIA GARCIA,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER MICHAEL MENDEZ, Shield No. 7126, POLICE OFFICER ROBERT GOULD, Shield No. 12374, DETECTIVE WILLIAM DOOLEY, Shield No. 12614, SERGEANT VICENTE D. RODRIGUEZ, and POLICE OFFICERS JOHN DOES #1-10 (names and number of whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff MARIA GARCIA, by her attorneys, Jacobs & Hazan, LLP, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 23, 2016, at approximately 3:00 p.m., plaintiff Maria Garcia was lawfully inside of her apartment located at 1978 Madison Avenue, Apt. G2, New York, New York, when defendants unlawfully and forcibly entered her apartment without a valid and legally obtained search warrant, unlawfully searched plaintiff and her apartment, damaged property in plaintiff's apartment, unlawfully seized plaintiff, and falsely arrested plaintiff without probable cause or legal justification. The defendants transported plaintiff against her will to the 25th precinct where she was unlawfully photographed, fingerprinted, and placed in a holding cell. Plaintiff informed the defendant police officers that she suffers from Lupus and requested medical care, and the defendant police officers deliberately denied plaintiff medical care, causing plaintiff to suffer severe pain as well as a blood infection and other health problems following the incident. Plaintiff was denied the right to due process and right to a fair trial and maliciously prosecuted by the defendant officers until all charges against plaintiff were dismissed and sealed in their entirety on December 15, 2017. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully searched, confined, arrested, imprisoned, demonstrated deliberate indifference to her medical needs, denied her the right to due process/

right to a fair trial, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff MARIA GARCIA is and was at all times relevant herein a resident of the State of New York.

3. Defendant POLICE OFFICER MICHAEL MENDEZ, Shield No. 7126, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER MICHAEL MENDEZ, Shield No. 7126, is and was at all times relevant herein, assigned to the 25th Precinct.

5. Defendant POLICE OFFICER MICHAEL MENDEZ, Shield No. 7126, is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER ROBERT GOULD, Shield No. 12374, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER ROBERT GOULD, Shield No. 12374, is and was at all times relevant herein, assigned to the 25th Precinct.

8. Defendant POLICE OFFICER ROBERT GOULD, Shield No. 12374, is being sued in his individual and official capacity.

9. Defendant DETECTIVE WILLIAM DOOLEY, Shield No. 12614, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant DETECTIVE WILLIAM DOOLEY, Shield No. 12614, is and was at all times relevant herein, assigned to the 25th Precinct.

11. Defendant DETECTIVE WILLIAM DOOLEY, Shield No. 12614, is being sued in his individual and official capacity.

12. Defendant SERGEANT VICENTE D. RODRIGUEZ is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant SERGEANT VICENTE D. RODRIGUEZ is and was at all times relevant herein, assigned to the 25th Precinct.

14. Defendant SERGEANT VICENTE D. RODRIGUEZ is being sued in his individual and official capacity.

15. Defendants New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Defendants Police Officers John Does #1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. At all times relevant hereto, the CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

19. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On June 23, 2016, at approximately 3:00 p.m., plaintiff was lawfully present inside in her apartment located at 1978 Madison Avenue, Apt. G2, New York, New York, when the defendant police officers unlawfully entered the apartment without a valid or legally obtained warrant.

23. The defendant police officers told plaintiff that she was not free to leave the apartment because they were going to search the apartment and they needed someone present when they searched the apartment.

24. Although the police officers were already inside plaintiff's apartment they advised plaintiff that they were in the process of obtaining a search warrant for the apartment.

25. Although the defendant police officers had not searched the apartment yet or obtained a search warrant for the apartment, after approximately one hour they told plaintiff that she had to come to the precinct with them.

26. Although the defendant officers did not recover any drugs, weapons or other contraband from plaintiff or from plaintiff's possession, custody or control, the defendants falsely arrested and unlawfully handcuffed plaintiff and transported her to the 25th Precinct against her will where she was photographed, fingerprinted, and placed in a holding cell.

27. Before leaving her apartment the defendant police officers made plaintiff put on her bra and panties in front of two male police officers.

28. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers have probable cause or legal justification to accuse plaintiff of committing any crime or violating the law in any way.

29. Notably, the officers admit that they lacked probable cause to arrest plaintiff on June 23, 2016 before they executed a search warrant on her apartment and wrote in their paperwork that they brought her to the Precinct for questioning.

30. The defendant police officers did not obtain a search warrant to search plaintiff's apartment until June 24, 2016.

31. At the 25th Precinct, plaintiff, who suffers from Lupus, informed the defendant police officers that she needed to take her medication, which she is required to take twice per day, and that the stress caused by her false arrest and imprisonment was causing her Lupus to flare up.

32. Despite plaintiff's many requests to the defendant police officers for medical care, the defendant police officers demonstrated deliberate indifference to plaintiff's medical needs and refused to call an ambulance or provide any other treatment to plaintiff.

33. Due to the deliberate indifference of plaintiff's medical needs demonstrated by the defendant police officers by not providing plaintiff with her required medication or taking her to the hospital, plaintiff suffered severe pain all over her body, a severe migraine headache, and long-term damage to her immune system.

34. The search of plaintiff at the precinct was conducted by a female officer who searched underneath plaintiff's breasts and felt plaintiff's vagina. The unlawful search of plaintiff at the precinct caused plaintiff to suffer extreme emotional distress. The officers did not recover any illegal drugs, weapons or contraband from plaintiff pursuant to the search of her person.

35. Plaintiff was interrogated by defendants at the 25th precinct and was placed in a filthy holding cell with a concrete bench where she was unlawfully detained overnight.

36. The following morning on June 24, 2016 plaintiff asked a police officers at the precinct whether the officers searched her apartment yet. The officers told plaintiff that they had not yet searched the apartment because they were still waiting for a search warrant.

37. On June 24, 2016 the defendant police officers allege they searched plaintiff's apartment, but the defendants did not recover any illegal drugs, weapons or contraband from a location in the apartment that plaintiff had actual or constructive possession over.

38. Nevertheless, at approximately 5:00 pm on June 24, 2016, after she had been unlawfully detained for approximately 26 hours the defendant police officers issued plaintiff a Desk Appearance Ticket and released plaintiff from the 25th Precinct.

39. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

40. Plaintiff was required to appear for the Desk Appearance Ticket in New York County Criminal Court on August 22, 2016, at which time she was arraigned and charged with crimes she did not commit and for which the defendant police officers lacked probable cause or legal justification to accuse her of committing, including but not limited to Criminal Possession of Marijuana in the Fourth Degree, Criminal Possession of Marijuana in the Fifth Degree, and Unlawful Possession of Marijuana

41. Plaintiff was released on her own recognizance at arraignment.

42. Plaintiff was required to appear in New York Criminal Court on approximately four additional occasions and endure a criminal prosecution that lasted for approximately 1 year and 4 months until all charges brought against plaintiff were dismissed and sealed in their entirety on December, 15, 2017.

43. As a result of the false arrest and imprisonment of plaintiff, plaintiff was evicted from her apartment located at 1978 Madison Avenue, Apartment G2, New York, NY, and forced to move into a homeless shelter.

44. As a result of the false arrest and imprisonment of plaintiff, plaintiff missed her son's high school graduation from Foreign Language Academy of Global Studies High School, which occurred on June 23, 2016.

45. As a result of the unlawful search of plaintiff's apartment by the defendant police officers, plaintiff incurred property damage including damage to her television, shoes, and clothing. The defendant police officers also spilled several bottles of plaintiff's important Lupus medication all over the floor of her apartment during the unlawful search.

46. As a result of the false arrest, imprisonment and denial of plaintiff's right to due process and a fair trial, \$1340 was stolen from plaintiff on June 23, 2016 by the defendant police officers and never returned to plaintiff.

47. As a result of the deliberate indifference to plaintiff's medical needs by the defendant police officers which caused plaintiff to miss two doses of her Lupus medication in a row, plaintiff's Lupus symptoms worsened in the weeks following the incident.

48. As a result of the deliberate indifference to plaintiff's medical needs which caused plaintiff's Lupus symptoms to worsen, on July 21, 2016, plaintiff suffered a blood infection and severe headaches and was admitted to Jacobi Hospital Emergency Room.

49. Plaintiff was required to stay at Jacobi Hospital for approximately 8 days from July 21, 2016 until July 27, 2016 which medical staff administered antibiotics and pain medication to plaintiff in order to control her symptoms.

50. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, deliberate indifference to plaintiff's medical needs, and false arrest of plaintiff.

51. The unlawful search, false arrest, and false imprisonment, deliberate indifference to plaintiff's medical, denial of a right to fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denied of her right to fair trial and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of her right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

Unlawful Search

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

60. Defendants lacked probable cause to search plaintiff and her apartment.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

Malicious Prosecution

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

64. Defendants commenced and continued a criminal proceeding against plaintiff.

65. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

66. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

67. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

72. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

73. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

74. In withholding/creating false evidence against plaintiff Maria Garcia, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

75. As a result of the foregoing, plaintiff Maria Garcia, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of the Fourteenth Amendment **Deliberate Indifference to Medical Needs**

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. Defendants, despite being aware that plaintiff was seriously injured delayed plaintiff's medical treatment and refused to administer, and properly procure, immediate and adequate medical attention.

80. The delay in medical treatment to plaintiff's injuries resulted in the exacerbation of plaintiff's Lupus symptoms that would have been prevented if plaintiff was treated in a timely manner.

81. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the Fourteenth Amendment to the United States Constitution.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Failure to Intervene

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

85. Defendants failed to intervene to prevent the unlawful conduct described herein.

86. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

88. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Maria Garcia demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable costs and attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 3, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER MICHAEL MENDEZ, Shield No. 7126, 25th Precinct, 120 E 119th St, New York, NY 10035
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SERGEANT VICENTE D. RODRIGUEZ, 25th Precinct, 120 E 119th St, New York, NY 10035

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 3, 2019

/s/
DAVID M. HAZAN